

5.2. Case II (20%)

Daniel and Zeberga, neighbors and residents of Harar city, were longtime enemies. As a matter of fact, nobody knew what the cause of their enmity was. However, their friends made repeated efforts to solve their problems and reconcile the two. Despite these efforts, the two were looking for chances to cause maximum damages to one another. Yet, at the end, chance was on Zeberga's side. Two weeks ago, Daniel, partially intoxicated, was going home at 9:00 pm in the evening. At the same time, Zeberga was also going home after closing his shop and he spotted that Daniel staggering. Then, realizing that he was drunk, Zeberga followed Daniel, took out his pistol, put the silencer on his pistol, and shot him on his head from behind. Daniel fell down but he did not die instantly although he could not last more than a few minutes. Nevertheless, Daniel, unable to bear the agony of injury to his head, and also realizing that he would die very soon anyway, took out a knife from his pocket and cut his throat to put an end to his life.

5.2.1. If you were a public prosecutor, how would you establish a link between the act of shooting, which is not the last act to cause the death, and the death of Daniel to charge Zeberga? (15%)

5.2.2. If you were Zeberga's defence lawyer, what possible defence would you invoke? (5%)

SECTION V: CASES (30%)

READ THE FOLLOWING CASES VERY CAREFULLY AND ANSWER THE QUESTIONS THAT FOLLOW.

5.1. Case I (10%)

Kasnia, a small African state, is characterized by pundits as a failed state due to lack of functioning central government and collapse of law and order. Its internationally recognized but weak government was struggling to assert control and stand on its feet. In 2011, the United States of Sodor (USS) sent its troops to invade Kasnia due to growing concerns of religious extremism which USS considered a threat to its interests in Bangal Peninsula, where Kasnia is located. USS tried to justify its decision to send troops to Kasnia as a necessary step to stop the threat of terrorism as a result of non-state actors operating in Kasnia. Although USS managed to take large parts of Kasnia, its troops faced continuous insurgency. In particular, USS' troops were increasingly targeted by insurgents in Gondal city, the capital of Kasnia. Then, to control the insurgency, USS hired Private Military Companies such as *Domingo Enterprises*, which was providing security services for profit in Abari district of Gondal city. On March 11, 2012, the bodyguards of Domingo opened fire and killed 17 civilians whom they mistook for insurgents. Consequently, the government of Kasnia ordered an immediate withdrawal of Domingo from Abari. Now, Kasnia wishes to sue USS. Is there a legal basis under international law to make the government of USS liable for the killing of the civilians by Domingo Enterprises?

SECTION III: SHORT ANSWERS (15%)

GIVE SHORT ANSWERS TO THE FOLLOWING QUESTIONS

- 3.1. Mention the four guiding principles, also referred to as core messages, of the Convention on the Rights of the Child (CRC). (6%)
- 3.2. Mention the bases for distinguishing a federal constitution from a unitary constitution. (9%)

SECTION IV: ESSAY PART (20%)

- 4.1. Write an essay of (not more than 10 lines) explaining the bilateral nature of the obligations of employers and employees to ensure safe and healthy working condition at work place. (10%)
- 4.2. "Taxes are prices people pay for services they receive from government. So, taxpayers should pay tax only in proportion to the benefits they receive." Write an essay of (not more than 10 lines) commenting on the assertion from the perspectives of practicability and fairness/equity. (10%)

25. "No person shall be deprived of his/her liberty except on such grounds and in accordance with such procedures as established by law." Which constitutional principle does this statement best refer to?

- A. Separation of powers.
- B. Due process of law.
- C. Cabinet responsibility.
- D. Parliamentary sovereignty.
- E. Constitutional supremacy.

SECTION II: MATCHING (10%)

CHOOSE THE BEST MATCH FOR THE ITEMS UNDER A FROM THE ITEMS UNDER B.

A

- 1. Young workers
- 2. Collective rights
- 3. Prohibition against torture
- 4. Constitutive theory
- 5. Taxable transaction
- 6. Public goods
- 7. Legitimate defence
- 8. Federalism
- 9. Executive's law in Ethiopia
- 10. Ethiopian Election Board

B

- A. Taking the law into one's hand
- B. Regulations
- C. Rights enjoyed with others
- D. Conditional exclusion from labour law
- E. Power division between Central & Regional Government
- F. Excludable in nature
- G. Excusable act
- H. Requirement of recognition for Statehood
- I. Independent agency
- J. Second generation rights
- K. Seven hours working per day
- L. Absolute and non-derogable right
- M. Non-rivalry in nature
- N. Supply of goods or a rendition of services

21. Based on the FDRE Constitution, both the federal government and the states do have their own exclusive taxation domain in all of the following except:
- A. Employment income tax.
 - B. Business income tax.
 - C. Sales tax.
 - D. Customs duty tax.
 - E. Salary related tax.
22. In the context of value added tax(VAT), a transaction is said to be VAT exempted if:
- A. The person undertaking the transaction is not VAT registered.
 - B. The tax that has been paid on input is refundable and no more duty to collect VAT exists.
 - C. The tax paid on the input is not refundable but no more duty to collect VAT exists.
 - D. The transaction is eligible as zero rated transaction.
 - E. The transaction involves being hired and obtaining remuneration.
23. Amendment of human rights provisions in FDRE Constitution requires the decision of the following bodies **except**:
- A. The House of Peoples' Representatives.
 - B. The House of the Federation.
 - C. Regional States' Councils.
 - D. Council of Ministers.
 - E. The FDRE parliament.
24. Recall of elected representatives by people is a best example of:
- A. Accountability.
 - B. Arbitrariness.
 - C. Dictatorship.
 - D. Transparency.
 - E. Inclusiveness.

17. What is monism?
- A. Monism submits international law and domestic law are part of the same system of norms.
 - B. Monism posits interpretation and application of law must give primacy to domestic law.
 - C. Monism assumes that the validity of international law depends upon its conformity with domestic law.
 - D. Monism submits that domestic laws have priority over international law.
 - E. Monism provides that domestic laws and international law are two entirely separate legal systems.
18. Which one of the following organs of the United Nations is more exclusive?
- A. The Security Council.
 - B. The General Assembly.
 - C. ECOSOC.
 - D. UN Human Rights Council.
 - E. The Secretariat.
19. Which one of the following sources of revenue is **not** primarily designed for collecting revenue to the government?
- A. Taxes on employment income.
 - B. Taxes on games of chance like lottery.
 - C. Fines/penalties/ due to violation of laws.
 - D. Loans.
 - E. Donation.
20. Taxes in which the rate of tax remains constant irrespective of the extent of the tax base is referred to as;
- A. Progressive tax.
 - B. Proportional tax.
 - C. Regressive tax.
 - D. Digressive tax.
 - E. Constant tax.

13. All of the following are the functions of the African Commission on Human and Peoples' Rights except:
- A. Protecting human rights
 - B. Promoting human rights
 - C. Interpreting the African Charter
 - D. Adopting human rights related resolutions and principles.
 - E. Compelling states to take measures to enforce its decisions.
14. Which one of the following rights belongs to the first generation of rights?
- A. The right to development.
 - B. The right to moral and physical integrity.
 - C. The right to healthy environment.
 - D. The right to housing.
 - E. The right to education.
15. Which of the following is **false** about FDRE Constitution regarding human rights?
- A. Both Federal and State governments have assumed obligations towards the respect and enforcement of constitutional human rights provisions.
 - B. The Constitution has stipulated stringent amendment procedures for constitutional human rights provisions.
 - C. All non-derogable rights under International Covenant on Civil and Political Rights are made non-derogable rights in the Constitution.
 - D. The Constitution recognizes some economic and social rights.
 - E. Courts are given some roles to enforce human rights.
16. Which one of the following is **true** about states under international law?
- A. States which are founding members of the UN have more powers and authority than other states.
 - B. The five permanent members of the UN are more superior to other non-permanent states.
 - C. All states are equal *as per* the principle of sovereign equality affirmed under Article 2 (1) of the UN Charter.
 - D. The hierarchy and priority of states is decided upon their economic strength.
 - E. The Charter of the UN vests veto power to non-permanent members of the UN Security Council.

8. Which of the following aspects of employment relationships not regulated as a minimum labour condition?
- A. Employment security.
 - B. Occupational safety.
 - C. Minimum wage.
 - D. Working hours.
 - E. Weekly Rests.
9. Which of the following legal actions arising from employment relationship governed by Labour Proclamation 377/2003 has the shortest period of limitation?
- A. An action to claim payment in lieu of unutilized annual leave.
 - B. An action to claim payment for overtime work.
 - C. An action to claim reinstatement by unlawfully dismissed worker.
 - D. An action to claim severance payment.
 - E. An action to claim unpaid salary.
10. Which of the following situations may not constitute a ground/case of suspension of contract of employment?
- A. Force majeure encountered by the employer.
 - B. Maternity leave.
 - C. National call.
 - D. Leave without pay granted to the worker.
 - E. Detention of an employee for less than one month.
11. A principle that refers to the existence of human rights independently of the will of either an individual human being or a group of people is said to be:
- A. The principle of indivisibility.
 - B. The principle of universality.
 - C. The principle of inherence.
 - D. The principle of inalienability.
 - E. The principle of relativity.
12. Of the following, one **cannot** be the role of human rights NGOs.
- A. Promoting ratification of human rights treaty.
 - B. Following up on the concluding observation of treaty bodies.
 - C. Concluding human rights treaty.
 - D. Filing human rights complaints.
 - E. Creating human rights awareness.

4. A lawful act is not:
- A. An act performed to discharge public duty.
 - B. An act performed to discharge military duty.
 - C. An act performed under state of necessity.
 - D. An act performed to exercise a private right.
 - E. An act performed to exercise one's profession with prudence and according to accepted practice of the profession concerned.
5. Identify a factor that is **different** from the other in relation to sentencing a criminal.
- A. Committing a crime due to ignorance.
 - B. Committing a crime due to great material distress.
 - C. Committing a crime by joining hands with others.
 - D. Committing a crime because of serious provocation.
 - E. Committing a crime being in a state of partial responsibility.
6. Which of the following employment relationships **does not** come within the scope of application of Labour Proclamation no. 377/2003?
- A. Contract of apprenticeship.
 - B. Contract of employment of Ethiopians abroad.
 - C. Contract of employment of a foreigner by a business organization in Ethiopia.
 - D. Home-based work contract.
 - E. Contract of employment of young persons.
7. Which of the following statement is **correct** relating to collective labour relations?
- A. Existence of employers' association is a necessary precondition for collective bargaining.
 - B. An employer may be forced into collective bargaining.
 - C. A collective agreement remains valid even after the dissolution of the trade union that negotiated and signed it.
 - D. The right to engage in strike is equally guaranteed for all class of workers governed by Labour Proclamation no.377/2003.
 - E. Employees can negotiate collective bargaining individually if they want.

SECTION I: MULTIPLE CHOICES (25%)

CHOOSE THE BEST ANSWER FOR EACH QUESTION FROM THE ALTERNATIVES GIVEN. NOTE THAT THERE IS ONLY ONE BEST ANSWER FOR EVERY QUESTION.

1. Which one of the following choices can better explain the principle of *no law, no offence*?
 - A. Criminal punishment must be executed in a manner provided by law.
 - B. An omission may entail punishment even if it does not constitute a crime when it happens.
 - C. Any criminal provision which favours a suspect must be applied even retroactively.
 - D. An act that does not constitute a crime when it is done does not entail penalty.
 - E. An act can be criminalized even if it is not expressly declared so if another similar act is expressly criminalized.
2. Assume the Criminal Code contains the following provision: "any public official who receives bribe with a view to get unlawful enrichment shall be liable to rigorous imprisonment not exceeding 10 years". What is the required moral element of this crime?
 - A. Advertent negligence.
 - B. Direct intention.
 - C. *Doluseventualis*.
 - D. Indirect intention.
 - E. Knowledge of near certainty.
3. In principle, which one of the following persons can be characterized as more dangerous?
 - A. An author of a complete attempt.
 - B. An author of an incomplete attempt.
 - C. A person who renounces his criminal design.
 - D. A person who attempts to commit an impossible offence.
 - E. A person who completes his preparation to commit a crime but does not proceed with his plan.

**NATIONAL EDUCATIONAL ASSESSMENT AND EXAMINATIONS AGENCY
(NEAEA)**

**NATIONAL EXIT EXAM FOR
STUDENTS OF ETHIOPIAN LAW SCHOOLS
2014/2015 ACADEMIC YEAR**

PART II: PUBLIC LAWS

01 April 2015

Time Allowed: 3 Hours

INSTRUCTIONS:

1. ATTEMPT ALL QUESTIONS ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
2. LAWS THAT CAN BE BROUGHT TO THE EXAM ROOM ARE: THE FDRE CONSTITUTION, THE CRIMINAL CODE, THE LABOUR PROCLAMATION (377/2003) WITH ITS AMENDMENTS, INCOME TAX AND VAT PROCLAMATIONS.
3. SUPPORT YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS WHENEVER APPROPRIATE.
4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM PAPER.
5. YOU MAY ASSUME FACTS WHERE NECESSARY.
6. WRITE LEGIBLY.
7. SWITCH OFF YOUR MOBILE PHONE.

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